

Court No. - 37

Case :- WRIT - C No. - 45269 of 2013

Petitioner :- Mohan Kumar Agrawal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Mayank Agrawal, Ankit Gaur

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ashok Bhushan, J.

Hon'ble Vipin Sinha, J.

Learned counsel for the respondents is allowed one week time to obtain instructions.

Put up as fresh on 09/9/2013.

Order Date :- 2.9.2013

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Heard the learned counsel for the petitioner, Shri A.L. Yadav, learned counsel for the respondent nos. 1 & 2 and the learned standing counsel on behalf of the respondent nos. 3 & 4.

By this writ petition, the petitioner has prayed for quashing the demand notice dated

Petitioner is aggrieved by an electricity bill dated 7.3.2013 (annexure-4) to the writ petition by which a demand of Rs.22,59,664/- has been raised. The petitioner submits that the bill was incorrectly issued due to change in the billing software. The demand notice has been issued consequent to above electricity bill. The petitioner is really aggrieved against the electricity bill.

We are of the view that remedy of the petitioner is to file a complaint under paragraph 6.5 of U.P Electricity Supply Code, 2005. We observe, that in the event, the petitioner files a complaint in accordance with paragraph 6.5, to the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Electricity Distribution Division-I, Mau, the same shall be considered and expeditiously disposed of preferably within a period of one month from the date of submission of the complaint.

The writ petition is disposed of with the aforesaid observation.

(Vipin Sinha, J)

(Ashok Bhushan, J)

Order Date :- 9.9.2013

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